

Exhaustive Legal Analysis: Pre-Residency USDC Remuneration Basis and Split-Year PIT-38 Jurisdictional Mechanics

1. Executive Summary and Strategic Assessment

This comprehensive legal research report delivers a definitive external evaluation of the cross-border tax treatment of cryptocurrency assets for a Swedish national who established tax residency in Poland on April 12, 2023. The central controversy prompting this review involves the correct methodological framework for calculating the Polish PIT-38 tax base. Specifically, the inquiry focuses on the validity of importing pre-residency acquisition costs, the mandatory exclusion of pre-residency disposals, and the legal recognition of pre-residency USDC salary as a valid, importable acquisition cost under the Polish Personal Income Tax (PIT) Act.

Bottom-Line Recommendation: The "synthetic full-history Polish pool" currently utilized by the internal calculator is methodologically defective, statutorily invalid, and legally indefensible. It must be abandoned immediately in favor of a strictly delineated "split-year / imported-cost model."

Applying Polish domestic tax mechanics—namely, the aggregate annual cost pooling system—retroactively to fiscal years (2020–2022) and periods (January 1 – April 11, 2023) during which the taxpayer held exclusive Swedish tax residency violates fundamental principles of international taxation. It directly contravenes the doctrine of limited tax liability under Article 3(2a) of the Polish PIT Act¹ and ignores the jurisdictional allocation of taxing rights mandated by the Poland-Sweden Double Tax Treaty (DTT).²

The legally sound filing posture dictates the following overarching principles: Firstly, all cryptocurrency disposals executed prior to the establishment of the Polish centre of vital interests on April 12, 2023, must be strictly excluded from the Polish PIT-38 calculation.¹ Poland possesses no taxing rights over capital gains realized by a Swedish resident prior to their immigration. Secondly, the documented historical acquisition costs of cryptocurrencies acquired prior to the residency change—provided those specific assets remained held in the taxpayer's portfolio on the exact date of the move—are eligible for importation into the Polish PIT-38 cost pool in the first year of Polish tax residency.⁴ This importation is strictly contingent upon proving that these costs were not previously consumed against disposals in the foreign jurisdiction under Swedish K4 reporting rules.⁶ Thirdly, pre-residency remuneration received in USDC constitutes an "acquisition for consideration" (odpłatne nabycie) under Polish tax doctrine. The settled value of the salary receivable, appropriately converted to Polish Zloty

(PLN) using historical National Bank of Poland (NBP) exchange rates, forms a valid, importable acquisition cost basis.⁴

Filing under the split-year / imported-cost model is categorized as a Supportable to Conservative approach, aligning with recent administrative jurisprudence. However, affirmatively claiming the foreign-taxed USDC salary basis requires specific documentation and is categorized as an Aggressive but Arguable position. Given the material impact on the 2023-2025 tax liabilities, this warrants the immediate submission of an application for an individual tax interpretation (interpretacja indywidualna) to the Director of the National Tax Information (KIS) to secure binding protective harbor.

Methodological Assessment: Synthetic Pool vs. Split-Year Imported Cost

Legal Parameter	Synthetic Full-History Pool	Split-Year / Imported-Cost Model
Jurisdictional Logic	Applies Polish taxation and pooling mechanics retroactively to non-resident periods, blurring jurisdictional boundaries. Violates Art 3(2a) PIT	Strictly demarcates the period of limited tax liability (Art. 3 ust. 2a) from unlimited tax liability (Art. 3 ust. 1). Compliant
2020-2022 Disposals	Includes foreign disposals prior to establishing Polish residency into the Polish PIT calculation pool. Violates Art 3(2a) PIT	Excludes disposals made while holding foreign residency status (limited liability period) from Polish tax base. Compliant
Jan-Apr 2023 Disposals	Treats disposals preceding the strict move date as part of the unified Polish tax year history. Violates Art 3(2a) PIT	Applies strict timeline cutoff; excludes disposals executed prior to physical relocation and establishing center of vital interests. Compliant
Pre-Move Cost Importation	Fails to isolate pre-residency acquisition costs correctly, absorbing them into a continuous timeline rather than formal importation. Violates Art 3(2a) PIT	Accurately imports documented acquisition costs (per Art. 22 ust. 14) from foreign periods upon disposal as a Polish resident, declared via PIT-38 (Art. 30b ust. 6a). Compliant

The Split-Year model strictly demarcates the period of limited tax liability from unlimited tax liability, preventing the retroactive application of Polish pooling mechanics to Swedish tax periods.

Data sources: [Interpretacja Dyrektora KIS 0115-KDIT2](#), [Interpretacja Dyrektora KIS 0113-KDIPT2](#)

2. Jurisdictional Mechanics and the Doctrine of

Split-Year Tax Residency

The foundational error in the current computational model stems from a failure to correctly demarcate the boundaries of Polish fiscal jurisdiction. Resolving this requires a detailed analysis of the Polish Personal Income Tax Act, the mechanics of tax residency transfer, and the overriding provisions of the bilateral tax treaty.

2.1. The Legal Fiction of the Synthetic Full-History Pool

The internal calculator presently operates under a "synthetic full-history Polish pool" mechanism. This engine algorithmically processes all cryptocurrency transactions from 2020 through early 2023 as though the taxpayer were a continuous Polish resident, subjecting those historical transactions to the specific cost-aggregation and revenue-recognition rules of Article 22(14) and Article 30b of the PIT Act.¹⁰ This approach is not merely conservative; it is fundamentally flawed and structurally illegal.

Under Article 3(1a) of the PIT Act, a natural person is deemed to be a Polish tax resident subject to unlimited tax liability (*nieograniczony obowiązek podatkowy*) if they possess their centre of personal or economic interests (centre of vital interests) in the territory of the Republic of Poland, or if they are present in Poland for more than 183 days in a given tax year.¹ Importantly, Polish administrative courts and successive interpretations from the Ministry of Finance uniformly recognize the doctrine of "split tax residency" (*podział rezydencji podatkowej*) during a transitional year.¹¹ Tax residency is not an indivisible annual status; it shifts precisely on the day the taxpayer's centre of vital interests transfers across borders.

Prior to April 12, 2023, the taxpayer held exclusive Swedish tax residency. Consequently, during the 2020–2022 tax years and the initial months of 2023, the taxpayer fell strictly under Article 3(2a) of the PIT Act, which governs *limited tax liability* (*ograniczony obowiązek podatkowy*).¹ Under limited tax liability, Poland possesses the sovereign right to tax only those incomes that are explicitly sourced within Polish territory.¹ Cryptocurrency trading executed by a foreign resident on global, decentralized, or foreign-domiciled digital asset exchanges (e.g., Binance, Kraken) categorically does not constitute Polish-sourced income.

Therefore, applying a Polish tax calculation algorithm to the 2020–2022 periods and the January–April 2023 period imposes a retroactive legal fiction. It pulls global income realized by a non-resident into a Polish tax base, a practice that blatantly exceeds the statutory boundaries of Polish fiscal jurisdiction and violates the explicit text of the PIT Act.

2.2. Explicit Exclusion of Pre-Residency Revenue

Addressing the specific research questions regarding the taxation of split-year revenue, the legal directives are unequivocal:

First, for a taxpayer who establishes Polish tax residency on April 12, 2023, the Polish PIT-38 declaration for the 2023 fiscal year must absolutely exclude all crypto-to-fiat disposals executed from January 1 through April 11, 2023. These revenues accrued and the taxable events crystallized while the taxpayer was a Swedish resident, entirely outside the scope of

Polish taxation.¹

Second, the Polish PIT-38 calculation must not include any revenue derived from 2020–2022 disposals. The taxpayer possessed no unlimited tax liability in Poland during those periods, rendering those historical gains invisible to the Polish treasury.¹ The internal calculator's inclusion of 193,229.88 PLN in stablecoin disposal revenue from 2022 is a critical systemic error that artificially inflates the Polish tax base.

Third, the physical location of the exchange infrastructure, the continuing accessibility of the exchange post-move, or the subsequent repatriation of the fiat proceeds into a Polish bank account are entirely irrelevant to the jurisdictional analysis. In the taxation of capital gains, the taxable event crystallizes definitively at the exact moment of disposal—the point at which the cryptocurrency is exchanged for fiat currency, goods, services, or property rights.¹⁰ The transfer of previously realized, foreign-taxed capital into Poland by a new resident is a tax-neutral wealth transfer, not a taxable income event.

2.3. The Interplay with the Poland-Sweden Double Tax Treaty

The supremacy of international agreements over domestic tax law further invalidates the synthetic pool model. Under the Poland-Sweden Double Tax Treaty (DTT), the taxation of capital gains derived from the alienation of movable property (a classification encompassing native cryptocurrencies) is governed by the residual capital gains provision, typically Article 13(4) or Article 13(5) depending on the treaty iteration.²

Both statutory provisions unequivocally dictate that gains derived from the alienation of any property—excluding real estate or business property attributable to a permanent establishment—shall be taxable *only in the Contracting State of which the alienator is a resident*. The DTT utilizes exclusive allocation language.

Therefore, under the treaty tie-breaker rules, pre-move native crypto gains are taxable exclusively in Sweden. Post-move gains, realized on or after April 12, 2023, are taxable exclusively in Poland.² There is no overlapping jurisdiction, nor is there any double taxation on a single transaction that would require the application of a foreign tax credit or exemption relief mechanism.¹⁴ The taxing jurisdiction simply snaps from the Swedish Skatteverket to the Polish Krajowa Administracja Skarbowa (KAS) at the precise moment the taxpayer's centre of vital interests crosses the border. Consequently, running historical Swedish transactions through a Polish calculator essentially attempts to override the DTT's exclusive allocation of pre-move taxing rights to Sweden.

3. The Methodological Framework for Importing Pre-Residency Costs

Having established that pre-move revenues must be strictly excluded from the PIT-38 calculation, the analytical focus must shift to the correct methodology for calculating the opening Polish cost basis. The core inquiry is whether costs incurred while a resident of Sweden

can be recognized in Poland upon the post-move disposal of the assets.

3.1. KIS Jurisprudence on Cross-Border Cost Importation

Recent individual interpretations issued by the Director of the National Tax Information (KIS) confirm a highly favorable posture regarding the importation of historical acquisition costs. The Polish tax administration recognizes that historical acquisition costs incurred abroad prior to obtaining Polish tax residency are not forfeit upon crossing the border.

In interpretation 0113-KD IPT2-3.4011.205.2025.2.NM, the Director of the KIS explicitly ruled that costs incurred for the acquisition of virtual currencies by a taxpayer while resident in the United Kingdom (prior to relocating to Poland) can be classified as valid tax-deductible costs (*koszty uzyskania przychodów*) in the first Polish PIT-38 declaration.⁴ The primary condition is that these imported costs must meet the strict domestic definition outlined in Article 22(14) of the PIT Act—namely, that they are documented expenses directly incurred for the acquisition of the virtual currency.⁴

This principle is reinforced by parallel interpretations. For instance, interpretation 0115-KD IT1.4011.125.2026.2.MR affirms a taxpayer's right to carry forward unutilized crypto acquisition costs incurred during a period of United States residency into the Polish tax system upon repatriation.⁵ Similarly, interpretation 0115-KD IT2.4011.61.2026.2.ENB confirms that costs of acquiring cryptocurrencies incurred by a taxpayer migrating from the Netherlands to Poland (even with an interim period of traveling without formal residency) constitute valid deductible costs in Poland in the ultimate year of their disposal.¹ The legal consensus is clear: a change in tax residency does not erase the economic reality of an incurred acquisition expense.

3.2. Measuring "Not Deducted" and "Not Consumed" Costs

The critical methodological challenge lies in determining precisely *which* historical costs remain available for importation. The Polish cryptocurrency tax framework operates as an aggregate annual pool. Within a given fiscal year, all revenues from crypto disposals are aggregated, all allowable acquisition and disposal costs are aggregated, and any excess of costs over revenues is carried forward as a consolidated block to the subsequent tax year.¹⁰

However, one cannot simply aggregate all 2020–2023 pre-move expenses and import the gross total into the 2023 Polish PIT-38 return. To do so would allow the taxpayer to import costs associated with digital assets that were *already sold* while the taxpayer was resident in Sweden. If an asset was disposed of in Sweden, its corresponding acquisition cost was consumed to offset the capital gain reported to the Swedish tax authorities. Importing a previously consumed cost into the Polish jurisdiction would constitute an abusive double-deduction, artificially suppressing the Polish tax base.

Therefore, the legally correct method is not synthetic pooling, but rather **transaction-level tracing to specific assets still held at the move date**. The taxpayer must perform a precise reconciliation: identifying the specific units of cryptocurrency held in their digital wallets and exchange accounts at 23:59 on April 11, 2023. Only the specific, historical acquisition expenses directly attributable to *these specific surviving assets* may be lawfully imported into the Polish

tax calculation.

3.3. Systemic Friction: Swedish K4 Rules vs. Polish Cost Pooling

The transition from the Swedish tax system to the Polish tax system creates significant systemic friction due to divergent methodologies in basis tracking and taxable event recognition.

Sweden does not utilize a pooled or FIFO (First-In, First-Out) method for cryptocurrency inventory. Instead, the Skatteverket mandates the **Average Cost Basis (ACB) method** (omkostnadsbelopp), calculated discretely for each distinct asset type.⁷ Furthermore, unlike Poland, Sweden treats crypto-to-crypto swaps as taxable disposal events, subjecting them to capital gains tax.⁶

Conversely, Poland treats the exchange of one cryptocurrency for another as a strictly tax-neutral event, delaying the recognition of revenue until the asset is ultimately converted into fiat currency, goods, or services.¹⁹ Poland relies exclusively on the historical fiat cost injection to determine the basis.²¹

This divergence dictates the strategy for resolving the opening Polish balance: Firstly, consumption dictates the remaining basis. If a taxpayer acquired 2 BTC at disparate price points, the Swedish system averages their cost for K4 reporting.¹⁶ If the taxpayer then sold 1 BTC while resident in Sweden, exactly 50% of the aggregate historical fiat cost associated with that BTC stack was consumed under Swedish law to generate the taxable gain or allowable loss. Secondly, because the Polish tax authority expects the rigorous documentation of actual historical fiat expenditures²¹, the most legally defensible approach to prevent double-deduction challenges is to map the remaining cryptocurrency balance on April 12, 2023, against the unconsumed historical fiat cost tranches. Thirdly, does the act of paying Swedish tax on a crypto-to-crypto swap create a new "step-up" basis for the Polish calculation? Emphatically, no. Poland does not recognize an immigration step-up in basis for cryptocurrency assets.²² The Polish PIT Act strictly limits deductions to "expenses directly incurred" (wydatki bezpośrednio poniesione) to acquire the token.⁴ A crypto-to-crypto swap, while taxable in Sweden, does not generate a new out-of-pocket fiat expense recognizable under Polish law.¹⁹

Therefore, Swedish K4 records are the controlling evidence for what volume of cost was consumed prior to the move, but the *valuation* of the remaining importable cost must be traced back to the original fiat injection, regardless of intermediate taxable swaps executed under Swedish jurisdiction.

Recommendation for the calculator engine: The computational model must be rewritten. It should first calculate the total historical fiat injected into the crypto ecosystem prior to April 12, 2023. Subsequently, it must determine the percentage of the total crypto portfolio that was disposed of (converted to fiat or used for purchases) prior to April 12, 2023, utilizing Swedish K4 filings to verify consumption. The strictly unconsumed fiat costs associated with the tokens surviving the move date constitute the legal imported cost pool.

4. Pre-Residency Salary-Paid USDC as PIT-38 Acquisition Cost

The most aggressive, legally complex, and financially impactful variable in the taxpayer's 2022–2023 tax calculation is the treatment of the pre-residency USDC salary, which the data indicates totals 503,901.67 PLN in historical value.

4.1. The Doctrine of "Acquisition for Consideration" (Odpłatne Nabycie)

Under Polish fiscal law, the acquisition of cryptocurrency does not occur exclusively via the direct expenditure of fiat currency on an exchange. Recent, highly specific KIS interpretations—most notably 0112-KDIL2-2.4011.651.2023.1.WS⁸ and 0114-KDIP2-2.4010.332.2025.2.SP⁹—have solidified the doctrine of "odpłatne nabycie" (acquisition for consideration) in the context of digital asset remuneration.

When a taxpayer provides labor, services, or goods and is remunerated in cryptocurrency, two simultaneous legal and economic events occur:

1. The generation of a taxable receivable (przychód) for the services rendered.
2. The immediate settlement of that receivable via the receipt of the cryptocurrency.

The KIS logic is explicit in this regard: *"Your direct expense incurred to acquire the virtual currency will be the value of the receivable that you considered settled as a result of obtaining the virtual currency, i.e., the value of your remuneration due for the services provided. This value will be your tax-deductible cost obtaining revenues from the paid disposal of virtual currency..."*⁹ In essence, the taxpayer "buys" the cryptocurrency using the economic value of their own labor.

4.2. Application to Foreign-Taxed, Pre-Residency Remuneration

The internal calculator's current "safe-default policy" entirely excludes the 2022 USDC salary-cost bucket under the rationale that Poland did not tax the initial receipt of the income. This represents a fundamental misapprehension of cross-border tax logic and the nature of basis creation.

Does it matter that the USDC compensation was reported and taxed in Sweden rather than Poland? From a legal standpoint, no. The establishment of a cost basis in a barter or salary transaction is not a localized "reward" selectively granted only for paying Polish income tax. Rather, it is a fundamental mechanism for defining economic reality and measuring true capital accretion. The taxpayer provided real economic value (services), which created a legally enforceable economic receivable. The Swedish tax return serves as definitive, state-sanctioned evidentiary proof that this economic receivable existed, was settled at a specific fair market value, and was recognized as income.⁹

In this context, foreign tax recognition plays exactly the same anti-double-taxation role as

Polish PIT-36 or PIT-28 recognition does in purely domestic KIS interpretations.²⁴ To deny the cost basis upon the subsequent disposal of the USDC in Poland would mean that Poland is taxing the entire gross value of the USDC upon sale. This effectively taxes the underlying labor value that was already taxed in Sweden, violating both the prohibition against double taxation and the fundamental definition of income (dochod) in the PIT Act, which mandates the deduction of expenses incurred to secure an asset.⁴

4.3. Disposition Timing Nuances

Addressing the specific permutations regarding the disposition of the USDC:

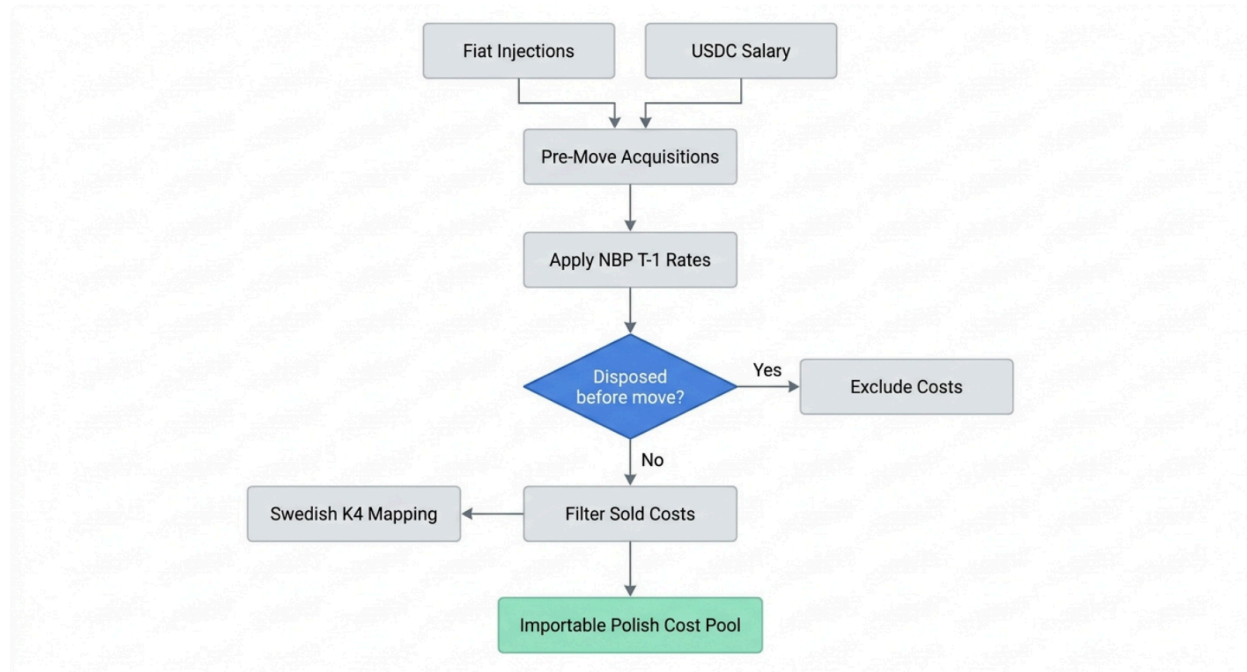
- **Pre-residency salary USDC sold before moving to Poland:** This bucket is entirely excluded from any Polish reporting. Both the revenue event and the consumption of the associated cost occurred under Swedish jurisdiction.¹
- **Pre-residency salary USDC still held on the move date and sold after becoming Polish resident:** This is the primary target. The value of the settled receivable becomes an importable Polish PIT-38 acquisition cost.⁴ The post-move disposal constitutes Polish PIT-38 revenue, offset by this imported basis.
- **Pre-residency salary USDC swapped into another crypto before the move and sold after the move:** Because Poland views crypto-to-crypto swaps as strictly neutral events¹⁹, the original USDC labor-cost basis carries over intact to the new token and is imported into Poland, provided the new token is held on the move date.
- **Pre-residency salary USDC deposited to an exchange after the move:** Stablecoin deposits from private wallets to exchange platforms are mere transfers of custody. They do not trigger a taxable event and do not alter the previously established cost basis.²⁵

4.4. Valuation Mechanics: Applying the NBP Exchange Rate

If the USDC salary bucket is successfully imported, the valuation methodology is strictly dictated by Polish accounting rules. Under Article 11a of the PIT Act, costs incurred in a foreign currency must be converted into Polish Zloty using the **average exchange rate announced by the National Bank of Poland (NBP) from the last business day preceding the day the cost was incurred.**⁴

For remuneration, the "day the cost was incurred" is the day the receivable was settled—i.e., the day the USDC arrived in the taxpayer's designated wallet. Therefore, the correct legal method is to take the historical USD value of the USDC (or the actual fiat amount stipulated in the underlying service contract) and apply the NBP USD/PLN rate from the business day *prior* to the on-chain receipt.²⁸ The Swedish taxed SEK value is an artifact of Swedish domestic currency conversion rules and is entirely irrelevant for establishing the Polish tax basis.

Methodology for Calculating Importable Pre-Residency Cost Basis



Only the historical acquisition costs—including labor-derived receivables converted at NBP rates—associated with digital assets actively held at the moment of Polish tax residency acquisition may be imported into the PIT-38 pool.

5. Evidence, Documentation, and Burden of Proof

Under Polish tax law, the burden of proving the existence and exact magnitude of a tax-deductible expense rests entirely upon the taxpayer.⁴ Article 22(14) of the PIT Act specifically relies on the phrase "documented expenses" (udokumentowane wydatki), granting tax inspectors broad latitude to reject costs that lack rigorous substantiation.⁴ Given the cross-border complexities and the aggressive stance regarding USDC remuneration, the evidentiary threshold is exceedingly high.

The taxpayer must systematically retain and prepare the following documentation matrices to withstand potential KAS scrutiny:

- **Exchange and Card Fiat Purchases:** Primary evidence must include bank statements demonstrating the outgoing fiat transfers, exchange trade histories detailing the execution price and asset volume, and records of the historical NBP rate tables for the conversion dates.²⁷
- **Salary and Compensation in USDC:** This is the most heavily scrutinized bucket. Evidence must include the original service contracts establishing the right to

remuneration, corresponding invoices issued to the client or employer, on-chain transaction hashes definitively proving the receipt of the exact USDC amounts matching the invoices, and, crucially, the Swedish tax returns demonstrating that this specific remuneration was declared and subjected to income tax in Sweden.⁴

- **Swedish Tax Reporting (K4 Integration):** The taxpayer must retain their complete Swedish tax filings (K4 forms). During a Polish audit, these documents will be required to demonstrate the exact quantum of cost basis that was "consumed" in Sweden, proving mathematically that the costs currently being imported to Poland represent strictly the unconsumed residual basis.⁷
- **Wallet and Chain Provenance:** Technical evidence showing continuous custody. The taxpayer must demonstrate that the specific digital assets associated with the imported historical costs were actively held in wallets controlled by the taxpayer on April 12, 2023, and were not disposed of or lost prior to the residency transfer date.

6. Formal Required Outputs: Tables and Recommendations

6.1. Transaction Bucket Treatment Table

The following matrix provides the definitive treatment protocol for each transactional bucket under the recommended split-year / imported-cost model, evaluating the legal confidence of each position based on current KIS jurisprudence.

Transaction Bucket	Treatment Protocol for Polish PIT-38	Confidence Level	Reasoning / Authority
Pre-residency fiat-to-crypto purchases	Import as Cost. Only the historical fiat cost of tokens remaining in the portfolio on April 12, 2023, is imported. Convert foreign fiat to PLN using NBP T-1 rate.	High	KIS 0113-KDIPT2-3.4011.205.2025.2.NM expressly permits importing pre-residency costs not previously deducted. ⁴
Pre-residency salary USDC (held at move)	Import as Cost. The settled receivable value becomes the cost.	Aggressive but Arguable	KIS 0112-KDIL2-2.4011.651.2023.1.WS confirms

	Convert the USD value to PLN using NBP T-1 rate from the date of on-chain receipt.		remuneration creates cost basis. ⁸ Applying this logic across a residency border is structurally sound but lacks specific published precedent.
Pre-residency salary USDC (sold before move)	Exclude Entirely. Neither the revenue nor the cost enters the Polish calculation.	Very High	Taxpayer was subject to limited tax liability in Poland; foreign-sourced gains of non-residents are outside Polish jurisdiction. ¹
Post-residency Poland-taxed USDC remuneration	Report as Cost. Must first be reported as PIT-36/PIT-36L income, which simultaneously crystallizes the PIT-38 cost basis upon subsequent disposal.	High	Confirmed by KIS interpretations 0112-KDIL2-2.4011.651.2023.1.WS and 0115-KDIT1.4011.22.2025.1.MR. ⁸
Deposit-only stablecoin transfers	Neutral / Exclude. Wallet-to-exchange deposits are not taxable events and do not generate a step-up in basis.	Very High	Deposits do not involve alienation for fiat, goods, or services. ²⁵
Pre-move 2023 disposals (Jan 1 - Apr 11)	Exclude Entirely. Do not run through the PIT-38 pool.	Very High	Art 3(2a) PIT Act and DTT Art 13. ¹

6.2. Calculation-Method Recommendation

The current engine output demonstrates the catastrophic tax inflation caused by the synthetic full-history model. By forcing 2020–2022 into a Polish framework, the calculator incorrectly pulls 193,229.88 PLN of 2022 stablecoin revenue into a Polish ledger while simultaneously attempting to deny the offsetting 503,901.67 PLN in pre-residency salary cost.

This systemic mismatch must be resolved by adopting **Transaction-Level Tracing with a K4 Baseline Reconciliation**. The optimal method to determine the opening cost balance on April 12, 2023, involves:

1. Identifying the precise portfolio holdings on April 11, 2023.
2. Tracing those holdings back to their original acquisition events (fiat injections or USDC salary receipts).
3. Applying the NBP T-1 exchange rate to those specific acquisition events to derive the PLN cost basis.⁴
4. Reconciling against the Swedish K4 to ensure no costs being imported into Poland were already utilized to offset gains in Sweden.

Under the simplified post-move-only model provided in the facts, an opening imported cost of 134,579.93 PLN is sufficient to zero out the 2024 and 2025 PIT-38 tax. Given that the pre-residency salary USDC alone represents roughly 503,901 PLN in historical cost, successfully importing even a fraction of this unconsumed basis via the transaction-tracing method will likely eliminate Polish tax exposure entirely for the periods under review, provided the USDC was actually held on the move date.

6.3. Authority Table

Source Authority	Holding / Legal Principle	Relevance to Case	Confidence / Status
Art. 3(1a) & 3(2a) PIT Act ¹	Establishes unlimited vs. limited tax liability. Non-residents are taxed only on Polish-sourced income.	Dictates the split-year exclusion of pre-move disposals. Proves the synthetic pool is illegal.	Black-Letter Law (Absolute)
DTT Poland-Sweden, Art. 13 ²	Capital gains from movable property are taxable only in the state of	Confirms pre-move crypto sales belong exclusively to the Swedish tax base.	Binding International Treaty

	residency at the time of alienation.		
0113-KDIPT2-3.40 11.205.2025.2.NM ⁴	Documented costs incurred abroad before obtaining Polish residency can be deducted in the first Polish PIT-38 if not previously consumed.	Provides the direct legal mechanism for importing the historical fiat cost basis.	Published KIS Practice (High)
0115-KDIT2.4011.6 1.2026.2.ENB ¹	Costs incurred while resident abroad or traveling are deductible in Poland upon eventual disposal.	Reinforces the validity of importing foreign-incurred costs into PIT-38.	Published KIS Practice (High)
0112-KDIL2-2.4011 .651.2023.1.WS ⁸	Receiving crypto for services is an acquisition for consideration. The value of the settled receivable is the directly incurred expense.	Justifies treating the pre-residency USDC salary as a valid acquisition cost under Polish principles.	Published KIS Practice (Medium-High for cross-border application)

6.4. Filing Risk Assessment and Practical Next Steps

- **Conservative Posture:** Exclude all pre-move revenue. Import only direct fiat-to-crypto purchase costs for assets held at the move date. Exclude the pre-residency USDC salary bucket entirely.
- **Supportable Posture:** Exclude all pre-move revenue. Import fiat-to-crypto costs based on transaction-tracing, rigorously netting out any costs consumed on Swedish K4s.
- **Aggressive but Arguable Posture (Recommended Strategy):** Exclude all pre-move revenue. Import fiat-to-crypto costs *and* the pre-residency USDC salary cost (converted at historical NBP rates) for assets held at the move date. This is the most economically accurate reflection of the taxpayer's basis, but it relies on extending established KIS doctrine (0112-KDIL2-2.4011.651.2023.1.WS) across a residency border.

Practical Next Steps for 2023-2025 Filings:

To execute the Polish filings before the statutory deadlines (April 30), the taxpayer and preparer must immediately halt the synthetic calculator engine. Freeze all portfolio data at 23:59 on April 11, 2023. Calculate the total PIT-38 revenue generated strictly from April 12, 2023, to December 31, 2023. Perform the transaction tracing for the opening balance, execute NBP conversions, and reconcile against the Swedish K4 returns to prevent double-deduction.

Adopt a "File and Amend" Strategy: If the filing deadline is imminent, the taxpayer should file the 2023 and 2024/2025 PIT-38 returns using the Aggressive but Arguable posture (importing the USDC salary basis), as this reflects true economic cost and avoids vast overpayment. Concurrently, submit an ORD-IN application for an individual interpretation. If the KIS ultimately issues a negative interpretation regarding the USDC salary bucket, the taxpayer can safely amend the previously filed PIT-38 returns (korekta zeznania) and pay the resulting tax with default interest, thereby shielding themselves from severe penal-fiscal (kks) sanctions. If positive, the returns stand protected by the statutory harbor.

6.5. Draft KIS Interpretation Questions

The application to the Director of the KIS should be structured around the following draft questions, framed strictly within the context of the taxpayer's specific facts:

Question 1 (Jurisdictional Revenue Exclusion):

Czy w związku ze zmianą rezydencji podatkowej ze szwedzkiej na polską w dniu 12 kwietnia 2023 r., Wnioskodawca ma obowiązek wykazywać w polskim zeznaniu PIT-38 przychody ze zbycia walut wirtualnych (wymiany na walutę fiducyjną) uzyskane w okresie od 1 stycznia 2023 r. do 11 kwietnia 2023 r., podczas gdy posiadał on wyłącznie szwedzką rezydencję podatkową i ograniczony obowiązek podatkowy w Polsce w rozumieniu art. 3 ust. 2a ustawy o PIT?

(Expected Answer: No. Aligns with limited tax liability principles.)

Question 2 (USDC Remuneration Cost Basis Recognition):

Czy udokumentowana wartość wierzytelności z tytułu wynagrodzenia za usługi, uregulowana poprzez otrzymanie przez Wnioskodawcę przed 12 kwietnia 2023 r. (w okresie szwedzkiej rezydencji podatkowej) waluty wirtualnej (USDC), która to wartość podlegała opodatkowaniu podatkiem dochodowym w Szwecji i nie została rozliczona jako koszt w szwedzkim systemie podatkowym z uwagi na brak zbycia tej waluty przed przeprowadzką, stanowi dla Wnioskodawcy koszt uzyskania przychodu w rozumieniu art. 22 ust. 14 ustawy o PIT w momencie odpłatnego zbycia tej waluty wirtualnej już po uzyskaniu polskiej rezydencji podatkowej, w wartości przeliczonej na PLN według kursu średniego NBP z ostatniego dnia roboczego poprzedzającego dzień uregulowania wierzytelności?

(Expected Answer: Yes. Applies the doctrine of odpłatne nabycie to cross-border scenarios.)

Question 3 (Cost Importation Mechanics and K4 Reconciliation):

Czy Wnioskodawca postąpi prawidłowo, wykazując w zeznaniu PIT-38 za rok 2023 jako koszty z

lat ubiegłych (niepotrącone w poprzednim roku podatkowym) wyłącznie historyczne wydatki na nabycie walut wirtualnych poniesione przed dniem 12 kwietnia 2023 r., które przypisane są do walut wirtualnych faktycznie posiadanych przez Wnioskodawcę w portfelu na dzień uzyskania polskiej rezydencji podatkowej (tj. po rygorystycznym wyłączeniu kosztów przypisanych do walut zbytych przed tą datą w ramach szwedzkiego rozliczenia)?

(Expected Answer: Yes. Confirms the transaction-tracing methodology over the synthetic pooling approach.)

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